

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 23-01

SAMSUNG ELECTRONICS
AMERICA, INC.,
COMPLAINANT,

v.

SM LINE CORPORATION,

RESPONDENT.

**SECOND RESPONSE TO
NOTICE OF SUPPLEMENTAL AUTHORITY**

Complainant Samsung Electronics America, Inc. (“SEA” or “Complainant”) provides the following update to its May 2, 2025 Response to Respondent SM Line Corporation’s (“SM Line” or “Respondent”) April 28, 2025 Notice of Supplemental Authority filed in regard to the submission of the initial decisions *Samsung Electronics America, Inc. v. ZIM Integrated Shipping Services Ltd.* (Dkt. No. 22-30) and *TZ SSE Buyer, LLC v. Yang Ming Marine Transport Corp.* FMC Docket No. 24-10 (March 24, 2025, with Notice Not to Review dated April 24, 2025) (the “Response”).

In the *ZIM* proceeding, Complainant SEA, and Respondent ZIM Integrated Shipping Services Ltd., both filed exceptions to the initial decision that is the subject of SM Line’s April 28 Notice of Supplemental Authority. *See* Dkt. No. 22-30, Doc. Nos. 64 and 63. SEA submits the Presiding Officer here can take notice of the fact of the exceptions and arguments raised therein. As a result, the initial decision in that proceeding has been rendered inoperative pending the Commission’s decision thereof. 46 C.F.R. §

502.227(a)(5). Under the current scheduling order, the Commission is scheduled to rule on the *ZIM* exceptions on or before November 10, 2025.

Dated: May 22, 2025

Respectfully submitted,

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CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 22nd day of May 2025, the foregoing document was served via electronic mail on:

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